

THE CALL CENTER for HILCHOS RIBBIS

UNDER THE AUSPICES OF HARAV PINCHOS VIND SHLITA



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סניף ליקוואוד וגלילותיה

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הרה"ג ר' פינחס וינד שליט"א

Using ribis oil for Chanukah

Q. Not realizing that ribis applies to items as well (not just money), I lent my friend half a bottle of oil, stipulating that he must return a full bottle. After having already received a full bottle in return, I found out that it was אסור and I must return the extra oil I received. May I use the extra oil for lighting חנוכה ליכט and give him back other oil or not?

Explanation of the Question. We find that a guest can't fulfill the obligation of lighting ליכט חנוכה merely with the owner of the house having him in mind and including him in his הדלקה, rather he must pay something towards the ליכט or make a proper קנין by picking up the candles/oil.¹ Thus, it would seem that the reason one needs to make a קנין for the נרות is because one needs to own the oil itself in order to be able to fulfill the mitzvah of lighting Chanukah ליכט.

This brings us to the next step, does an item that was received as a ribis payment - where the item or its value needs to be returned - still belong to the borrower? Or once returned (even באיסור) it belongs to the lender with an obligation to return it (or its value)?

Another point we need to deal with is that even if we say that it belongs to the lender, and consequently he can fulfill his obligation with this oil, since it came through an עבירה maybe one will not be allowed to make a ברכה on this mitzvah, just as we find this concept in other places.²

A. writes in his Sefer חנוכה, מאי חנוכה, that one may use the oil for חנוכה ליכט and make a ברכה. He explains that even if you hold that the oil must be his (to fulfill his obligation), that's only if someone else lights for him. However, if one lights by himself, it doesn't have to be his. In addition, he adds, that even if one holds that when lighting for oneself the candles/oil must be his, nevertheless, an item that was received as ribis is considered his and one can then fulfill his obligation. Also, he explains, that there is no problem with making a ברכה, as only regarding the transgression of stealing is there an issue of בירך נעץ ה'. However, by other איסורים we do not say that.

However, in truth, this היתר (that when lighting oneself he need not own the candles/oil) is not so simple, as the basic reading of the ר"ן is that in order to fulfill one's obligation for נרות חנוכה one needs to own the candles/oil. Thus, the opinions of Harav Elyashiv Zt"l (נמצא בשבות יצחק) and Harav Tzvi Pesach Frank Zt"l (מקרא קודש, חנוכה סימן כ"א) is that one must own the oil to fulfill the obligation of lighting Chanukah candles/oil.

Furthermore, although there are many opinions who hold like the author of מאי חנוכה, that an item received as ribis payment belongs to him, this too is not so simple, as the רבינו ירוחם brings from בית שמואל (אבהע"ז סי' כ"ח ס"ק כ"ו) that if someone uses ribis money to be מקדש a lady she is not מקודשת, inferring that one does not own the money returned as ribis.³

In addition, regarding the last point of making a ברכה, since he has an obligation to return the ribis, it would seem to be considered as if he is still in middle of the איסור, making it similar to the גזל איסור, which we find an איסור of making a ברכה even after the איסור is over. The reason for this is, since he still has a חיוב to return the item, we view it as if he is in middle of doing the איסור. Thus, the same should apply to an item received as ribis, and one may not recite a ברכה there as well.⁴

Q&A

Q. I am a Mashgiach in a Yeshiva that has a policy of קנס'ing a תלמיד for not following the rules. We have a rule that if the student doesn't pay within two weeks of the קנס the קנס continues to go up until he pays. I would like to know if there is any ribis issue with this policy? Is it the same as the איסור of charging a recurring late fee for money owed, as stated in י"ז קע"ז סעיף י"ז?

A. There is no ribis issue in this case.

Explanation. In essence, if the Mashgiach doesn't keep and use the money, but rather holds on to it until the student leaves the yeshiva, then the money the תלמיד owes is not a real obligation that would be considered that the תלמיד has a loan to repay, and consequently there will be no issues of ribis.

However, even if the mashgiach keeps and uses the money, thereby making the monies of the קנס owed to the ישיבה a real obligation, causing it to be considered a loan which needs to be paid in which the laws of ribis would apply, it would still be מותר. The reason for this is because **whenever it's clear (not just a possibility) that the reason why the lender is charging the extra fee is not because the borrower is delaying payment, rather for a different reason, it's מותר.** Therefore, here too here, it's clear that the reason the קנס will keep on going up is because of the disrespect the student has for the משגיח to not pay on time, and not as late fee for not paying the "loan" in a timely fashion. The proof to this is that even schools who hold on to the money and return it later on, will still charge this additional fee if the student doesn't pay on time making it obvious that the fee is not because of late payment.

Q. I borrowed four hundred and eighty-five dollars from a friend. When the loan was due, I paid up the loan with a five-hundred-dollar third party check that I wasn't able to deposit in my account. I told him that he should keep the extra fifteen dollars as payment for dealing with a third-party check, as it would be a טירחא on his part to cash the check, and I myself would have needed to pay a fee to cash it. Is there any issue with what I did?

A. It all depends on your intention. If it's true that you told him to keep the extra money for his טירחא, then there is no issue. However, if deep down, the truth is that you did it because of the loan it would be אסור.



Did you know? Lending someone American dollars in a foreign country on condition he returns American dollars can be a ribis issue, since the value of the dollar can fluctuate, and at the time of payment it may be worth more. However, if the borrower has any of his own American dollars in his possession then it would be permitted.

Did you know that there are many היתר עיסקא's on the market that are either completely פסול or extremely questionable?

An example of this is the היתר עיסקא offered by Roc360, a very popular commercial lender, whose היתר עיסקא is not acceptable by many leading Rabonim. One of the issues is that it states as follows: "This Iska agreement is implemented to address a matter of Jewish law and this Iska agreement may not be introduced by any court or presented as defense in any court in respect to the note, loan agreement, mortgage and any other loan documents."

- ¹ עיין במשנ"ב סי' תרע"ז בשער הציון אות ט', ונראה דזה מיוסד ע"פ דברי הר"ן ריש פ"ק דפסחים שכתב דשאינו יוצא אלא בשל עצמו. ולהבנה היאך מהני השתתפות בפרוטה למעשה קנין, עיין בשו"ת שבט הקהתי ח"ו סי' רמ"ח שהביא כמה מהלכים בענין זה.
- ² עיין באו"ח סי' קצ"ו דאין לברך על חטין שגזל דבוצע בירך נאץ ה'.
- ³ עי' בספר ברית פינחס [פרק כ' סעיף ו'] שחושש לשיטות אלו.
- ⁴ עיין בשו"ת מהרי"א אסאד סי' ק"ס שאסר לחולה שמצה מזיקו לברך מחמת מצוה הבאה בעבירה, ובספר אמרי כהן עמוד י' בענין התורם מן הרעה על היפה שלא יברך. ועי' בפתחי תשובה יו"ד סימן קס"א סק"י לענין אתרוג של ריבית לצאת בו.

הגליון נדבה לזכות ולעילוי נשמת

ר' דוד ע"ה בן יבלט"א ר' פנחס שליט"א
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ר' משה יצחק גרשון בן ר' אברהם יהודה ז"ל
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